

The Monitors

Three watchdogs, each constituted by a body other than the one it watches. Information-only — they publish, they don't decide — until a Monitor's own conflict of interest turns the design in on itself, and the closeness of the three Monitors' own working relationship becomes the problem.

§9.1 – §9.9, §9.9.a
Article IX

THREE MONITORS, ONE RULE – §9.1, §9.1.A-C

Legislative Monitor

WATCHES

The Legislature — census, redistricting, mandate compliance, referendum eligibility

SELECTED BY

SC nominates → national popular vote

Own candidate pool audited by: EM + JM jointly

Executive Monitor

WATCHES

Both Consuls + the Monetary Authority — military compliance, appointments, electoral finance

SELECTED BY

Assembly + Senate Speakers jointly → national popular vote

Own candidate pool audited by: LM + JM jointly

Judicial Monitor

WATCHES

Courts, Elections Panel, Article XVI/XX compacts — audits constitutional pool administration

SELECTED BY

Public lottery, former-judges pool → national popular vote

Own candidate pool audited by: LM (service record) + EM (financial disclosure)

IF A MONITOR IS COMPROMISED, VACANT, OR UNDERFUNDED – §9.1.D, §9.6, §9.7.A

TERM EXPIRY

Automatic Void

Authority ends the instant a term expires — no further act needed. Any act taken after is constitutionally void.

MID-TERM VACANCY

Acting by Seniority

Most senior candidate-pool member by continuous tenure serves as Acting until a successor is confirmed under §9.3.

BAD FAITH – §9.7.a

2-of-3 Petition

Two Monitors petition the SC. Suspension occurs only if the SC confirms bad faith within 14 days; silence lapses the petition. On confirmation, the senior eligible accepting pool member acts (§9.7.a).

FUNDING FLOOR – §9.6

Self-Executing

Budget below the MA-certified inflation floor without 2/3 override? Prior year's funding takes effect automatically — no Monitor has to ask.

REMOVAL – AND WHERE A MONITOR'S OWN ETHICS FITS

Standard Track §9.9

1/3 either chamber, or 2-of-3 Monitors →

SC: category only, 14 days → 2/3 both chambers

This SC-category and legislative-vote track applies to other independent officers within §9.9's scope. Monitor Generals instead face a national referendum initiated by the designated non-auditing branches. Filing immediately suspends authority; 60% approval and 55% participation remove. A failed or untimely vote restores authority.

Monitor Self-Disclosure §9.9.a

Publish direct to NRS →

No peer review →

§9.9 if concealed

Monitors disclose like any officer, but **no Monitor reviews another's disclosure** — the JMC's close, years-long working relationship makes peer review the wrong tool here. Concealment or an unrecused conflict must be a statutory §9.9 removal category. No new institution invented — but for a Monitor General, §9.9 removal now runs its own route: initiated by the branch that Monitor does not audit, and decided by national referendum rather than by the Legislature.

NUMBERS WORTH REMEMBERING

10

years — full **non-renewable** term. An unscheduled replacement serves only the remainder; acting service is separate.

2/3

of both chambers to **cut Monitor funding** below its inflation-adjusted floor — otherwise the cut simply doesn't take effect.

2

of 3 Monitors is **JMC quorum** — no joint function can be permanently blocked by one Monitor's non-participation.

0

findings are **binding** on anyone. Monitors publish; they never enforce, direct, or decide.